

# ECAPFX Proprietary Firm – Claims & Complaints Policy

Effective Date: 11 April 2025

Regulatory Reference: UK Financial Conduct Authority (FCA) – DISP Sourcebook

## 1. Purpose and Regulatory Alignment

1.1. ECAPFX operates as a proprietary trading firm offering simulated trading challenges. We do not manage client funds, provide investment advice, or engage in regulated investment activities.

1.2. This Policy is designed to ensure that all claims and complaints are handled promptly, fairly, and transparently, in accordance with the FCA's Principles for Businesses (PRIN) and relevant sections of the DISP Sourcebook, where applicable to our business model.

1.3. This Policy applies to all ECAPFX customers, partners, and stakeholders.

## 2. Definitions

2.1. Complaint – As defined by the FCA, “any oral or written expression of dissatisfaction, whether justified or not, from or on behalf of a person about the provision of, or failure to provide, a financial service.”

2.2. Claim – Any formal request for remedy, compensation, or corrective action arising from the interpretation or execution of ECAPFX's Terms & Conditions, service agreements, promotional commitments, or operational performance.

2.3. Eligible Complainant – A person or entity meeting the FCA's eligibility criteria for escalation to the Financial Ombudsman Service (FOS).

## 3. Scope

This Policy covers, but is not limited to:

3.1. Disputes regarding trading challenge outcomes.

3.2. Funded account eligibility decisions.

3.3. Alleged misrepresentation or inaccuracies in ECAPFX marketing or website content.

3.4. Technical failures or service interruptions.

3.5. Intellectual property infringement reports.

## 4. Submission of a Complaint or Claim

4.1. Complaints and claims must be submitted in writing to [complaints@ecapfx.com](mailto:complaints@ecapfx.com).

4.2. The submission must include:

- Full name and registered ECAPFX account email.
- Detailed description of the issue.
- Date of incident.
- Supporting evidence (e.g., screenshots, trade IDs, correspondence).
- Desired resolution.
- Strategy information (if relevant to the matter).

## 5. Acknowledgement and Timelines

5.1. ECAPFX will acknowledge receipt of a complaint promptly, and in any case within five (5) business days.

5.2. A final response letter will be issued within eight (8) weeks of receipt.

5.3. Where a final response cannot be issued within this timeframe, the complainant will be informed in writing of the reason for the delay and advised of their right to escalate the matter.

## 6. Internal Review Process

6.1. All complaints will be logged in ECAPFX's internal compliance management system.

- 6.2. An independent reviewer, not directly involved in the subject matter, will conduct the investigation.
- 6.3. Additional information may be requested from the complainant if required.
- 6.4. All evidence will be handled in accordance with UK GDPR and ECAPFX's Data Retention Policy.
- 6.5. A clear, reasoned resolution will be provided, citing any relevant contractual or policy provisions.

## **7. Escalation to the Financial Ombudsman Service (FOS)**

7.1. If you are dissatisfied with our final response, and you are an eligible complainant, you may refer your complaint to the FOS within six (6) months of receiving our final response letter.

7.2. Contact details for the FOS:

- Website: [www.financial-ombudsman.org.uk](http://www.financial-ombudsman.org.uk)
- Email: [complaint.info@financial-ombudsman.org.uk](mailto:complaint.info@financial-ombudsman.org.uk)
- Telephone: 0800 023 4567
- Address: Exchange Tower, London, E14 9SR

## **8. Malicious or Misleading Claims**

8.1. ECAPFX reserves the right to suspend accounts or take legal action where complaints are found to be deliberately false, misleading, or malicious.

## **9. Intellectual Property Claims**

9.1. To submit an IP claim, provide:

- Description of the copyrighted work.
- Proof of ownership.
- URL(s) of alleged infringement.
- Your full contact details.

9.2. ECAPFX will review such reports in line with UK Copyright Law.

## **10. FCA Principles**

This Policy upholds the following FCA Principles for Businesses:

- Principle 6: A firm must pay due regard to the interests of its customers and treat them fairly.
- Principle 7: A firm must pay due regard to the information needs of its clients and communicate information to them in a way which is clear, fair, and not misleading.

## **11. Contact Information**

- Complaints & Claims: [complaints@ecapfx.com](mailto:complaints@ecapfx.com)
- General Enquiries: [contact@ecapfx.com](mailto:contact@ecapfx.com)
- Website: [www.ecapfx.com](http://www.ecapfx.com)